

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Perri Fagin	Team: Squad #05	CCRB Case #: 201605973	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/09/2016 3:47 PM	Location of Incident: West 142nd Street and 7th Avenue	18 Mo. SOL 1/9/2018	Precinct: 32		
Date/Time CV Reported Sat, 07/09/2016 3:57 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 07/09/2016 3:57 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eddy Soriano	09336	953431	PSA 6
2. SGT Elvis Badia	01674	948635	PSA 6
3. POM Jeffrey Gill	21040	958632	032 PCT
4. An officer			032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Rosario Gatongarcia	7275	954854	032 PCT
2. SGT Giorlys Alvarez	2709	941341	032 PCT
3. POM Zachariya Syed	13117	961342	032 PCT
4. POM Mark Velasco	15857	961414	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Elvis Badia	Abuse: At West 142nd Street and 7th Avenue in Manhattan, Sergeant Elvis Badia stopped § 87(2)(b)	A . Substantiated
B . POM Eddy Soriano	Abuse: At West 142nd Street and 7th Avenue in Manhattan, Police Officer Eddy Soriano stopped § 87(2)(b)	B . Substantiated
C . POM Eddy Soriano	Abuse: At West 142nd Street and 7th Avenue, Police Officer Eddy Soriano refused to provide his shield number to § 87(2)(b)	C . Unsubstantiated
D . An officer	Abuse: An officer did not process § 87(2)(b) and § 87(2)(b) complaint regarding officers.	D . Officer(s) Unidentified
E . POM Jeffrey Gill	Abuse: At the 32nd Precinct stationhouse, Police Officer Jeffrey Gill did not process § 87(2)(b) complaint regarding officers.	E . Substantiated

Case Summary

On July 9, 2016, § 87(2)(b) filed this complaint on behalf of herself and her son, § 87(2)(b) via the CCRB's call processing system.

On July 9, 2016, at approximately 3:47 p.m., § 87(2)(b) was walking alone, playing "Pokémon Go" on 7th Avenue between West 141st Street and West 142nd Street in Manhattan, when PO Eddy Soriano and Sgt. Elvis Badia, both from PSA 6 and identified via investigation, ordered § 87(2)(b) to stop and requested his identification (**Allegations A and B**). § 87(2)(b) complied. PO Soriano explained to § 87(2)(b) that they were conducting an investigation, and had Central repeat the description of a suspect over the radio. PO Soriano took a photo of § 87(2)(b)'s identification with his cell phone. § 87(2)(b) asked PO Soriano for his name and shield number, but PO Soriano ignored this request (**Allegation C**).

§ 87(2)(b) who § 87(2)(b) had called and informed of the situation, arrived to the scene as Sgt. Badia and PO Soriano were leaving. § 87(2)(b) and § 87(2)(b) walked to the 32nd Precinct stationhouse, where they spoke with an unidentified officer about filing a complaint regarding this incident. That officer allegedly said he could not help them because the officers involved in the incident, who were unidentified at the time, may not have been from the 32nd Precinct (**Allegation D**). PO Jeffrey Gill from the 32nd Precinct allegedly heard this conversation, approached § 87(2)(b) and told him to call 311 (**Allegation E**).

Neither § 87(2)(b) nor § 87(2)(b) were arrested or summonsed as a result of this incident. There is no video evidence in this case.

This case was delayed because it took approximately two and a half months to receive the complete radio communications CD from the NYPD.

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- As of October 4, 2016, a Notice of Claim was not filed with the New York City Comptroller's Office regarding this incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s and § 87(2)(b)'s first CCRB complaint (Board Review 03).
- Sgt. Badia has been a member-of-the-service for six years, and has three prior CCRB complaints filed against him involving four allegations, none of which were substantiated § 87(2)(g).
- PO Soriano has been a member-of-the-service for four years, and has three prior CCRB complaints filed against him involving four allegations, two of which were stop allegations, but none of which were substantiated.
- PO Gill has been a member-of-the-service for one year, and this is his first CCRB complaint.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) (Board Review 04) and § 87(2)(b) (Board Review 09) testified that after § 87(2)(b) was stopped, they immediately walked to the 32nd Precinct stationhouse to file a complaint regarding the incident and spoke with an Asian male officer who was standing outside the stationhouse with a group of officers. They both alleged that this officer refused to process their civilian complaint. § 87(2)(b) described the officer as either Filipino or Mexican, while § 87(2)(b) described him as a light-skinned Asian male.

A search of the CCRB's Complaint Tracking System revealed that 15 Asian male officers are assigned to the 32nd Precinct. A review of the 32nd Precinct's tour 2 and tour 3 roll calls (Board Review 22) indicates that six Asian male officers were either beginning or ending their tours around the time of the incident. These officers' memo books were obtained (Board Review 10), but none contained entries related to this incident. One of these officers had a memo book entry that suggested he may have been at the stationhouse at this time, but upon being interviewed, PO Zachariya Syed from the 32nd Precinct (Board Review 14) did not recall whether he was present for or involved in this incident.

Sgt. Giorlys Alvarez (Board Review 11) and PO Rosario Gatón-García (Board Review 12), both from the 32nd Precinct, had stationhouse assignments at the time of the incident, but did not recall the incident. Photo viewings were presented to § 87(2)(b) and § 87(2)(b) (Board Review 13), but they were both unable to identify the subject officer of this allegation. § 87(2)(g)

§ 87(2)(b) described the second officer who refused to process his complaint as a blonde-haired, blue-eyed male who wore a Pokémon card in his uniform hat. § 87(2)(b) did not mention this officer or a second refusal to process a civilian complaint allegation.

PO Gill (Board Review 17) identified himself as the sole officer at the 32nd Precinct who wears a Pokémon card in his uniform hat, an assertion that was corroborated by PO Syed and PO Mark Velasco (Board Review 16) from the 32nd Precinct. Although PO Gill did not specifically recall this aspect of the incident, he confirmed that he was at the stationhouse at the time and his CCRB Interview Report (Board Review 23) confirms that he is a white male with brown hair and hazel eyes. § 87(2)(g)

Allegation Not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: At West 142nd Street and 7th Avenue in Manhattan, Sergeant Elvis Badia stopped § 87(2)(b)

Allegation B – Abuse of Authority: At West 142nd Street and 7th Avenue in Manhattan, Police Officer Eddy Soriano stopped § 87(2)(b)

It is undisputed that Sgt. Badia and PO Soriano stopped § 87(2)(b) and that PO Soriano had Central repeat the description of the suspect they were looking for over the radio for § 87(2)(b) to hear.

§ 87(2)(b) who is a black male (Board Review 25), testified that he was playing “Pokémon Go” on his cell phone and dressed in a black hat, white t-shirt, and black basketball shorts when he was stopped.

The NYPD radio communication CD (Board Review 19) revealed that a radio run for an assault was put over the radio at approximately 3:37 p.m. The information conveyed was the following: an assault occurred at West 142nd Street and Frederick Douglas Boulevard, the wanted suspect was a black male who, in a group of 10 other males, assaulted one male and was wearing a white shirt and black pants with white on the sides of the pants. The complainant was an anonymous third-party caller. An officer from PSA 6 requested a repeat of the description and the operator repeated that the wanted suspect was a black male wearing a white shirt and black pants with white on the sides. At 3:49 p.m., the PSA 6 Sergeant informed the operator that a male was stopped at 142nd Street and 7th Avenue and that a report was prepared.

Sgt. Badia (Board Review 05) and PO Soriano (Board Review 06) testified that they received a radio run of an assault involving a black male perpetrator who was wearing a white shirt and black pants. They testified that the assault occurred at West 142nd Street and 7th Avenue, but neither could recall whether any further description or information was provided. Sgt. Badia and PO Soriano testified that when they first saw § 87(2)(b) he seemed very agitated, was walking quickly, and was speaking on his phone in the vicinity of West 142nd Street and 7th Avenue. Sgt. Badia and PO Soriano described § 87(2)(b) as a black male wearing a white shirt and black pants. Sgt. Badia and PO Soriano testified that they did not notice any injuries on § 87(2)(b) throughout the encounter that would indicate that he had been involved in an assault prior to this incident.

Both Sgt. Badia’s memo book (Board Review 20) and PO Soriano’s memo book (Board Review 21) corroborate their testimonies. The event regarding the assault (Board Review 24) accurately described the NYPD radio communication, and the Stop and Frisk Report (Board Review 07) prepared by PO Soriano for § 87(2)(b) reiterates the same description that was put over the radio.

Officers may not stop an individual based on a vague description of a perpetrator of an alleged crime, even if the stop occurs within 15 minutes of the alleged crime and in the vicinity of the alleged crime. People v. Riddick, 269 A.D. 2d 471 (2000) (Board Review 08).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** and **B** be closed as **substantiated**.

Allegation C – Abuse of Authority: At West 142nd Street and 7th Avenue, Police Officer Eddy Soriano refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) alleged that he asked PO Soriano for his shield number three times and that Sgt. Badia and PO Soriano ran back to their unmarked car and drove away without PO Soriano providing the requested information. § 87(2)(b) was not yet present to witness this aspect of the incident.

Sgt. Badia and PO Soriano described § 87(2)(b) as very agitated. They said he was speaking quickly and continuously interrupted them. PO Soriano testified that § 87(2)(b) was cursing, but he did not know what exactly he was saying. Sgt. Badia and PO Soriano both expressed that due to his demeanor, they were unable to understand what § 87(2)(b) said aside from complaining about being stopped. PO Soriano (Board Review 18) did not recall hearing § 87(2)(b) request his shield number.

§ 87(2)(g)
It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D –Abuse of Authority: An officer did not process § 87(2)(b) and § 87(2)(b)'s complaint regarding officers.

As detailed above in the Explanation of Subject Officer Identification section, the investigation was unable to identify which officer may have refused to process § 87(2)(b) and § 87(2)(b)'s civilian complaint. It is therefore recommended that **Allegation D** be closed as **officer unidentified**.

Allegation F – Abuse of Authority: At the 32nd Precinct stationhouse, Police Officer Jeffrey Gill did not process § 87(2)(b) complaint regarding officers.

§ 87(2)(b) testified that while speaking with the unidentified officer involved in Allegation D, PO Gill, who wearing a Pokémon card in his uniform hat and was identified via the investigation, approached and told him to call 311. § 87(2)(b) had an affinity for the Pokémon card due to his interest in “Pokémon Go.”

PO Gill testified that he often wears a Pokémon card inside of his uniform hat and stated that he was “probably” wearing one on the date of this incident. PO Gill recalled once showing a black or Hispanic male civilian his Pokémon card at the stationhouse, but he could not recall when he did so or any further details of that interaction. PO Gill testified that he did not know if a civilian complaint could be filed at the stationhouse.

An officer must process a civilian complaint when made in person, which includes preparation of the civilian complaint report form in the complainant’s own handwriting, furnishing assistance to the complainants, and having the individuals sign the complaint form in the appropriate section. NYPD Patrol Guide, Section 207-31 (Board Review 15).

§ 87(2)(g)
It is therefore recommended that **Allegation F** be closed as **substantiated**.

Squad: 5

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date